OMEGA SIPANI-HUNGWE
versus
RUMGOLD TRADING (PRIVATE) LIMITED
and
HUWANDU MINING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 17 September 2025 & 16 March 2026

Opposed Application

Mr *M S Nyanoka*, for the applicant
Mr *H K Muza*, for the 1st respondent

Introduction

This is an application in which the applicant seeks leave of this court to file a supplementary opposing affidavit in case number HCH 5698/24, the main matter pending before this court. The principal dispute in that matter concerns a claim for *rei vindicatio* instituted by the first respondent against the present applicant.

The application is opposed by the first respondent. The second respondent did not meaningfully oppose the relief sought.

The court is therefore called upon to determine whether the applicant has established sufficient grounds for the court to exercise its discretion in her favour and allow the filing of an additional affidavit outside the ordinary sequence of affidavits prescribed in motion proceedings.

The application raises important questions regarding:

- the circumstances under which a court may allow supplementary affidavits,
- the proper exercise of judicial discretion in motion proceedings, and

- whether the applicant's conduct constitutes abuse of court process or bona fide litigation conduct aimed at assisting the court in determining the real dispute between the parties.

Background

The background facts giving rise to this application are largely common cause.

The first respondent, Rumgold Trading (Private) Limited, instituted proceedings in case number HCH 5698/24 seeking the return of certain mining equipment, which it claims ownership of. The claim is founded upon the *rei vindicatio*, a remedy available to an owner seeking the return of property from a person who retains possession without lawful justification.

The applicant, Omega Sipani-Hungwe, is currently in possession of the mining equipment in question.

The applicant's position is that the equipment came into her possession within the context of a mining partnership or commercial arrangement between herself and the second respondent, Huwandu Mining (Private) Limited.

According to the record before this court:

- The first respondent leased mining equipment to the second respondent.
- The second respondent entered into a mining arrangement with the applicant.
- During the subsistence of this arrangement, the equipment was utilised in mining operations.

At some point, the relationship between the parties deteriorated and the first respondent demanded the return of its equipment.

When the first respondent sought recovery of the equipment, it discovered that the equipment was in the possession of the applicant, who asserted a lien or possessory right arising from her commercial relationship with the second respondent.

Consequently, the first respondent instituted the rei vindicatio proceedings.

The Present Application

While preparing for the hearing of the main matter, the applicant states that she became aware of additional information which, in her view, is material to the determination of the dispute.

The applicant avers that an individual by the name Celeste Hansen had on different occasions acted on behalf of both respondents. According to the applicant, this discovery raises serious questions regarding the relationship between the two respondents and the circumstances surrounding the agreements relied upon in the main proceedings.

The applicant therefore seeks leave to file a supplementary opposing affidavit placing this information before the court.

The first respondent opposes the application and raises several objections, which may be summarised as follows:

1. The application is not *bona fide* and was filed merely to delay the main proceedings.
2. The information sought to be introduced does not affect the issues in the main dispute, which is a rei vindicatio claim.
3. The evidence was available earlier and should have been introduced in the ordinary course of pleadings.
4. The supplementary affidavit introduces a new defence and alters the controversy between the parties.

These objections must now be examined in light of the applicable legal principles.

- **Issues for Determination**

The issues that arise for determination are the following:

1. Whether the applicant has shown sufficient grounds for the court to exercise its discretion to allow the filing of a supplementary affidavit.
2. Whether the proposed evidence materially alters the cause of action or defence in the main proceedings.

3. Whether the application was made *bona fide.*

4. Whether allowing the affidavit would promote or prejudice the interests of justice.

The Law on Supplementary Affidavits

It is well established that the filing of affidavits in motion proceedings follows a defined sequence.

Ordinarily, the pleadings consist of:

1. The founding affidavit,

2. The opposing affidavit, and

3. The answering affidavit.

Additional affidavits are not permitted as of right.

The principle governing such applications was clearly articulated in *Associated Newspapers of Zimbabwe* v *Media and Information Commission* 2006 (1) ZLR 128 (H) where MAKARAU J held:

> "Leave to file additional affidavits cannot be had for the asking. The court will insist on the observance of its rules regarding the sequencing of affidavits unless, in the view of the court, justice will miscarry."

This principle has consistently been followed in a number of decisions including:

- *Mobil Oil Zimbabwe (Pvt) Ltd* v *Travel Forum (Pvt) Ltd 1990 (1) ZLR 67 (H)*
- *Jackson* v *Rothmans of Pall Mall (Zim) (Pvt) Ltd 1993 (2) ZLR 156 (S)*
- *Scotfin Ltd* v *Afri Trade Supplies (Pvt) Ltd 1993 (2) ZLR 170 (H)*
- *Mangwiza* v *Ziumbe NO & Anor 2000 (2) ZLR 489 (S)*

These authorities establish that the court retains a wide discretion to permit further affidavits where the interests of justice require it.

Similarly, in *NetOne Cellular (Pvt) Ltd* v *Kangai* HH 441/19, CHITAPI J emphasised that the rule allowing further affidavits is an exception, but one that may be invoked where the circumstances justify it.

The overriding consideration remains whether the admission of the evidence will assist the court in arriving at a just and fair determination of the dispute.

Whether the Application is *Bona Fide*

The first respondent argues that the application was brought merely to delay the hearing of the main matter.

This court is not persuaded by that submission.

An allegation of abuse of court process must be supported by clear evidence. The mere fact that an application is brought close to the hearing date does not automatically establish *mala fides.*

The applicant has provided an explanation that the relevant information came to her attention only during preparations for the hearing. Courts must approach such explanations with caution but must equally guard against excluding potentially relevant evidence solely on technical procedural grounds.

In *Busangabanye & Anor* v *Matsika & Others* HH 680/22, the court emphasised that when considering the admission of additional evidence, the court must examine:

- the relevance of the evidence,
- the explanation for its late introduction,
- the sincerity of the applicant, and
- the potential prejudice to the opposing party.

Having considered these factors, this court is satisfied that the application cannot simply be dismissed as an abuse of process.

Whether the Evidence is Relevant

The first respondent submits that the proposed supplementary affidavit is irrelevant because the main matter concerns *rei vindicatio*, which is a remedy available to an owner against any person in possession of the property.

While that submission is correct in principle, it does not completely dispose of the matter.

The rei vindicatio requires the plaintiff to establish:

1. Ownership, and
2. Possession by the defendant.

However, the context in which possession arose may still be relevant, particularly where the defendant asserts a lien or possessory right.

The applicant contends that the relationship between the respondents and the agreements governing the equipment are material to understanding the circumstances in which the equipment came into her possession.

In my view, the proposed affidavit may assist the court in clarifying the commercial relationships between the parties, which is relevant to the defence raised in the main proceedings.

Whether the Evidence Was Previously Available

The first respondent argues that the information relied upon was available long before the application was made.

While the applicant's explanation could have been more detailed, the authorities make it clear that the court must consider whether justice would be served by allowing the evidence.

As stated in *Associated Newspapers of Zimbabwe* v *Media and Information Commission 2*006 (1) ZLR 128 (H), the court must be satisfied that refusing the affidavit will not result in a miscarriage of justice.

In the present case, excluding the affidavit would prevent the court from considering potentially relevant information concerning the relationship between the respondents and the agreements forming the backdrop of the dispute.

It is preferable that such information be placed before the court rather than excluded on purely procedural grounds.

Whether the Affidavit Introduces a New Defence

The first respondent contends that the supplementary affidavit introduces a new defence and materially alters the controversy between the parties.

This court does not agree.

The applicant's primary defence remains unchanged — namely that her possession of the equipment arises from her commercial dealings with the second respondent.

The proposed affidavit merely seeks to provide additional factual context to that defence.

It does not alter the fundamental issues before the court.

Prejudice

The first respondent also submits that allowing the application would prejudice it because it has been deprived of the use of its equipment.

While that concern is understandable, it must be balanced against the need to ensure that the dispute is determined on a complete and accurate factual record.

Any procedural prejudice can be addressed by allowing the respondents an opportunity to file further affidavits responding to the supplementary affidavit.

Costs

The first respondent sought punitive costs on the basis that the application is frivolous.

Punitive costs are awarded only in exceptional circumstances where a litigant has acted vexatiously, dishonestly or with reckless disregard for the court process, as discussed in *Kadira NO* v *Nhemwa NO & Others* HH 97/23, citing AC Cilliers, Law of Costs (2nd ed).

No such conduct has been established in this case.

The application was brought to place additional information before the court and cannot be characterised as abusive litigation.

Disposition

In the final analysis, this court is satisfied that:

- the proposed supplementary affidavit may assist in resolving the dispute between the parties,

- the applicant has provided a reasonable explanation for seeking to introduce the evidence, and
- allowing the affidavit will not cause irreparable prejudice to the respondents.

The interests of justice favour the admission of the supplementary affidavit.

Order

Accordingly, it is ordered that:

1. The applicant is **granted leave to file a supplementary opposing affidavit** in case number **HCH 5698/24** within **five (5) days** of this order.
2. The respondents are granted **leave to file answering affidavits** to the supplementary affidavit within **five (5) days of service thereof**.
3. Thereafter the matter shall proceed in accordance with the rules of this court.
4. **Costs shall be in the cause.**

KATIYO J:…….

Mahuni Gandiri Law Chambers, Applicant's Legal Practitioners
Muza Attorneys, Respondent's Legal Practitioners